

Appellant's Motion to Supplement the Record (RAP 9.11(a))

COURT OF APPEALS OF THE STATE OF WASHINGTON
DIVISION ONE

ZACKARIAH BENNETT, Appellant,
v.
MELVINA MANNING, Respondent.
No. 87007-6

APPELLANT'S MOTION TO SUPPLEMENT THE RECORD (RAP 9.11(a))

I. INTRODUCTION

Appellant, Zackariah Bennett, moves pursuant to RAP 9.11(a) to supplement the record on appeal with two exhibits that were introduced and referenced in the trial court but omitted from the record transmitted to this Court. These exhibits consist of:

- (1) Facebook Messenger communications between Appellant and Respondent, spanning 2010–2016, introduced into evidence on November 16, 2023 (Exhibit A); and
- (2) transcript excerpts from the summary judgment hearing held on June 28, 2024 (Exhibit B).

II. LEGAL STANDARD

Under RAP 9.11(a), this Court may direct that additional evidence be taken when necessary to fairly resolve the issues on review and where the evidence: (1) is needed to resolve the issues, (2) would probably change the decision, (3) could not have been discovered earlier with reasonable diligence, (4) is material to the issues raised, and (5) is part of or can be verified by the record.

III. ARGUMENT

All five factors are satisfied. The Facebook communications and transcript excerpts were before the trial court and directly bear on the issues of fraud, inducement, and due process. The communications demonstrate ongoing reliance and misrepresentation by Respondent, contradicting claims of abandonment and voluntary relinquishment. The transcript excerpts show Respondent's counsel's reliance on misstatements regarding res judicata, which the trial court accepted without review of the underlying record.

IV. CONCLUSION

Appellant respectfully requests that this Court supplement the record with the attached exhibits, both of which were filed and referenced in the trial court and are necessary for a fair and complete appellate review.

Dated: November 13, 2025

A handwritten signature in black ink, appearing to read 'Zack Bennett', with a long horizontal flourish extending to the right.

Respectfully submitted,

Zackariah Bennett, Pro Se
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